

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**Before the Federal Maritime Commission
Washington, D.C.**

**COMPLAINANT’S MOTION TO EXTEND DISCOVERY AND
REMAINING DEADLINES**

Complainant FormuKleen, Inc., by and through its representative, respectfully moves pursuant to 46 C.F.R. §§ 502.71 and 502.102 to extend the discovery deadline and remaining case schedule.

The current schedule provides that the deadline for submission of additional discovery requests was June 19, 2026, and that discovery closes July 9, 2026.

Good cause exists to extend the schedule. The recently completed depositions produced significant material testimony, admissions, contradictions, and factual issues requiring reasonable follow-up discovery. These issues could not have been fully addressed before those depositions occurred because Respondent’s prior discovery conduct prevented Complainant from identifying and pursuing them earlier.

Good cause also exists because Complainant's Motion to Compel was granted in part on April 1, 2026, but remains unenforced by the Commission.

Respondent still has not complied with that order.

Respondent's failure to produce complete discovery has severely prejudiced Complainant's ability to prepare its case. The recent depositions also raised significant additional issues concerning Respondent's compliance with discovery and with the discovery order, including whether responsive records were searched for, whether key custodians' email accounts were searched, and whether Respondent's representations concerning production are accurate.

Although this motion is filed on the date of the current discovery cutoff, the timing is justified by extraordinary circumstances and good cause. The existing schedule was compressed. The relevant depositions occurred immediately before the discovery cutoff, and the July 4 holiday further compressed the time available to evaluate testimony, confer, and seek relief. More importantly, Complainant could not reasonably have anticipated the full need for additional discovery until the depositions were completed because Respondent's incomplete production prevented Complainant from identifying those issues earlier. The requested extension is therefore not the result of Complainant seeking a second chance at discovery; it is the direct result of Respondent's failure to produce discovery that would have allowed Complainant to identify and pursue these issues earlier. That is especially true because Respondent has withheld discovery that the Presiding Officer already found should have been produced when Complainant's Motion to Compel was granted in part. The timing of this request is therefore the result of the compressed schedule, the timing of the depositions, the intervening holiday, Respondent's discovery conduct, and Respondent's continued failure to produce discovery, not any lack of diligence by Complainant.

Complainant does not seek this extension for delay. The requested extension is necessary to serve the interests of justice so that Complainant can pursue reasonable follow-up discovery arising from the recently completed depositions, Respondent's incomplete discovery production, discovery conduct, and unresolved compliance issues concerning the Presiding Officer's discovery order.

Respondent's Opposition Does Not Defeat Good Cause | Duty to Confer

Complainant conferred with Respondent regarding the requested extension. During conferral, Complainant, through its representative, advised Respondent that the recently completed depositions produced material new testimony, admissions, contradictions, and factual issues requiring reasonable follow-up discovery. Respondent therefore knows the basis for this request.

Respondent opposed Complainant's request, and Respondent's opposition avoids the actual basis for the requested extension. Respondent does not dispute that the depositions occurred immediately before the discovery cutoff, does not address the need for follow-up discovery arising from that testimony, and does not explain how its complaints about deposition procedure defeat good cause.

Respondent first states:

“During the parties’ scheduling discussions, Complainant maintained that extending the schedule beyond the Presiding Officer’s stated September completion target was ‘not workable.’ Respondent therefore objects to the present request to further extend the case schedule.”

Complainant previously opposed unnecessary delay based on the record as it existed at that time, due to Respondent's history of delaying these proceedings in order to evade compliance and consequence. The present request is based on later developments, and significant contradictions and discovery-compliance issues that arose immediately before the discovery cutoff that Complainant could not have anticipated due to Respondent's noncompliance with its obligations under discovery. Complainant's prior effort to keep the case on schedule does not waive Complainant's right to seek an extension when subsequent events and case posture make additional discovery necessary.

Respondent next states:

“Respondents requested that a Spanish interpreter be provided for the depositions.

Complainant denied that request and instead had its own client serve as the interpreter during the depositions.”

First, it is important to note that Representative Dandan is not the actual Complainant, but their representative.

Respondent requested a Spanish interpreter by email. Complainant, through its representative, initially disputed that an interpreter was necessary because the deponents speak English sufficiently to be deposed in English.¹ Nevertheless, to avoid controversy and in the interest of being accommodating and moving these proceedings forward, Complainant arranged for Spanish-language questioning, if needed, through an individual who speaks native and fluent Spanish, is from the same Spanish-speaking country of at least one of the deponents, and had filed a notice of appearance in this proceeding.

¹Complainant has first-hand knowledge of this.

Respondent did not object to that procedure during the deposition, did not seek relief from the Presiding Officer, did not object afterward, and then proceeded with *another* Spanish-speaking witness under the same procedure a week later; without prior or at-the-time objection. Respondent cannot now rely on an unpreserved, after-the-fact, and baseless complaint about prior deposition procedure to oppose an extension requested because the depositions produced significant material testimony and additional issues concerning Respondent's case and discovery compliance.

Respondent next states:

“During Mr. Villena's deposition, which lasted approximately six hours, Complainant refused Respondents' request for a lunch break.”

That statement is inaccurate and omits material context. Mr. Villena's deposition included multiple breaks, including a 10-minute break granted when Mr. Villena asked to call his mother. Mr. Villena was free to eat during those multiple breaks, just as Complainant's representative did. Mr. Villena was also free to request a lunch break, at an appropriate lunch time. Later, after the deposition had been going for approximately six hours, the court reporter asked for a five-minute health break. Complainant's representative agreed, stated that questioning was nearly complete, and explained that if questioning went longer than another 10 to 20 minutes, the parties would break. The court reporter then asked whether the deposition would go to 5:00. Mr. Villena then stated that he had not taken lunch and wanted to take lunch because he had a headache. The court reporter responded that lunch was “out of the question at this point” because it would push the deposition past 5:00.² Complainant's representative then

²The court reporter's concern was consistent with the Commission's deposition rule, which provides that, unless otherwise stipulated or ordered by the Presiding Officer, an oral deposition is limited to “1 day of 7 hours.” 46 C.F.R. § 502.143(d)(1).

stated that, as long as...questions are answered promptly, then we can wrap this up, and immediately resumed questioning with a narrowed remaining line of questions.³ The deposition concluded shortly thereafter. Respondent's attempt to re-frame that exchange as Complainant refusing a lunch break is inaccurate. The record shows a timing issue near the end of a six-hour deposition, after multiple breaks had already occurred, and in light of the Commission's deposition time limit. That does not address, much less defeat, good cause for an extension arising from Mr. Villena's corporate testimony.

Respondent finally states:

“During Mr. Del Monte's approximately three-hour deposition, no break was offered.”

A three-hour deposition without an additional break is not grounds to deny an extension of discovery. Respondent identifies no objection made during the deposition, no request for relief, and no prejudice that would defeat good cause for an extension of the discovery period. Mr. Del Monte had the right to ask for a break and did not exercise that right. Breaks benefit both parties, and Complainant's representative had no reason or interest to deny breaks to any witness, had one been asked for. That objection also does not address the material testimony and discovery issues raised before, during, and after the depositions.

Respondent's opposition confirms why an extension is necessary. Complainant requested an extension because the recent depositions produced material testimony and because of additional discovery issues, such as Respondent's non-compliance with the April 1, 2026 Order granting in part Complainant's Motion to Compel. Respondent does not meaningfully address that basis. Instead, after learning that Complainant intends to pursue follow-up discovery based

³Mr. Villena did not object.

on the testimony obtained, Respondent attempts to avoid further discovery by raising unpreserved and inaccurate complaints about deposition procedure. Those complaints do not cure Respondent's incomplete discovery production, do not resolve the pending enforcement issues, and do not eliminate Complainant's need for reasonable follow-up discovery due to Respondent's conduct.

The issue before the Presiding Officer is whether good cause exists to modify the schedule. Good cause exists because significant issues have come to light that could not reasonably have been pursued by Complainant before the close of discovery due to Respondent's previous and present discovery misconduct.⁴ Those issues include testimony, admissions, contradictions, factual issues, and discovery-compliance issues requiring reasonable follow-up discovery.

Proposed Amended Schedule

Complainant respectfully requests that the Presiding Officer enter the following amended schedule:

Deadline	Proposed Date
Deadline for additional discovery requests	July 17, 2026
Deadline for Complainant to amend the Renewed Motion to Enforce, if amended	July 29, 2026
Deadline for Respondent's response to the amended Renewed Motion to Enforce	August 5, 2026
Close of discovery and completion of depositions	August 27, 2026
Complainant's opening brief, proposed findings of fact, and appendix	September 24, 2026

⁴Complainant refers the Commission to the April 1, 2026 Order by the Honorable Judge Ambrow granting in part Complainant's Motion to Compel.

Deadline	Proposed Date
Respondent's opposition brief, responses to Complainant's proposed findings of fact, Respondent's proposed findings of fact, and appendix	October 8, 2026
Complainant's reply brief and responses to Respondent's proposed findings of fact	October 20, 2026

Respondent will not be prejudiced by the requested extension. Respondent has repeatedly sought extensions throughout this case. Indeed, the Presiding Officer previously stated that he was disinclined to grant Respondent further extensions absent extraordinary cause. Given Respondent's own history of requesting extensions, and given that the present request is caused by Respondent's discovery conduct and noncompliance, Respondent cannot credibly claim prejudice from the amended schedule requested here.

For the reasons above, Complainant respectfully requests that the Presiding Officer grant this motion and enter the amended schedule above.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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Signature: _____

Date: 07/09/2026

CERTIFICATE OF SERVICE

I certify that on July 09, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

Ricky Villena

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